



Appeal Decision

Site visit made on 11 August 2026

by R Sabu BA(Hons), MA, BArch, PgDip, RIBA, ARB

an Inspector appointed by the Secretary of State

Decision date: 11TH September 2026

Appeal Ref: 6003034

J Sainsbury, 73 High Street, Chislehurst BR7 5AG

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by MBNL (EE UK Ltd and H3G UK Ltd) against the decision of the Council of the London Borough of Bromley.
 - The application Ref is 25/01478/FULL1.
 - The development proposed is installation of 6 no. antennas on tripod frames and 4 no. transmission dishes on support poles, together with 4 no. equipment cabinets, and ancillary development thereto. Overall height of proposed apparatus is 20.6 metres AGL, height of mast taken by itself is 5.6 metres.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. As the proposal is in a conservation area and relates to a listed building I have had special regard to sections 66(1) and 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act).
3. I have taken the description of development from the application form, omitting reference to the address.

Main Issue

4. The main issue is the effect of the proposal on the character and appearance of the local area bearing in mind the special attention that should be paid to the desirability of preserving the setting of the nearby Grade II* listed building, (Parish Church the Annunciation of Blessed Virgin Mary (Church)), and the extent to which it would preserve or enhance the character or appearance of the Chislehurst Conservation Area (CA).

Reasons

5. The site lies within Chislehurst CA. The Chislehurst CA Supplementary Planning Guidance (SPG) states that the CA covers an extensive area and incorporates a diversity of forms of development and open space. The scattered village settlement developed around a plateau and was surrounded for most of its history by large country estates and densely wooded valleys. A network of settlements and open areas formed around Chislehurst Common. The arrival of the railway in the 19th century and the French Imperial Court in exile lead to the further development of the settlement as a sylvan residential retreat from the industrialised city.

6. The SPG also refers to Chislehurst High Street town centre as a focal point for areas both within and beyond the Conservation Area. The High Street was initially part of the hamlet of Prickend, before being subsumed into Chislehurst. It comprises a range of types of buildings, including 2 and 3 storey traditional terraces with commercial units on the ground floor and retains the character of a traditional village. Although the supermarket building on which the proposed equipment would be mounted dates from the 20th century and is modern in style, given its use of brick as a traditional material and modest height, the building is in keeping with the character of the area.
7. Accordingly, the significance of the CA, insofar as it relates to this appeal lies in the way the range of types and ages of the buildings reflect the development of the area as a fashionable suburb of London, particularly in the 19th century, around the open spaces that characterise Chislehurst.
8. As set out in the Heritage Impact Assessment (HIA), the Church is an important example of a 19th century church designed by James Brooks, a noteworthy Victorian Gothic Revival architect. Accordingly, the significance of the Church lies in the evidence of ecclesiastical historic architecture by a prominent architect. The HIA adds that Chislehurst High Street (including Mead Road) significantly contributes to the church's significance due to the 'village'-like feel of the surrounding Conservation Area and the connection between the church and the historic townscape of Chislehurst High Street.
9. The proposal includes antennas, transmission dishes and equipment cabinets mounted on the roof of the supermarket building. It would be located on a high point of the building at its northern end. The equipment would be visible in views with the Church and along the High Street. The modern style of the supermarket building has altered the character of the CA. However, the utilitarian appearance, height and prominent siting of the proposal would be seen in a number of views against the traditional character of the High Street. Accordingly, the proposal would harm the character and appearance of the street scene and the CA.
10. The proposed equipment may not be visible from some of the key features of the CA such as Chislehurst Common. However, given their height, prominence and character, the proposed equipment would detract from traditional character of the CA, thereby harming its significance. As the equipment would be significantly taller than the roof of the host building and would be visible in close proximity to the Church, the harm to the significance of the CA would be substantial.
11. Given that the proposal would detract from the traditional character of the setting of the Church, and that it would be seen in views with the Church, it would result in substantial harm to the setting of the Church.
12. Part 4 of Framework Policy HE6 states that where a development proposal would harm the significance of a designated heritage asset the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal.
13. Part 5 of the Framework states that where a development proposal would cause substantial harm to, or the total loss of, the significance of a designated heritage asset, consent should be refused unless it can be demonstrated that the harm is necessary to achieve substantial public benefits that outweigh the harm or loss, or

if a number of circumstances apply. None of the listed circumstances are applicable to this appeal.

14. In terms of public benefits, I note the economic, social, sustainability, health and education benefits put forward by the Appellant. The equipment would serve two operators and provide replacement and improved network coverage and capacity. It would also serve the Emergency Services Network (ESN). The evidence indicates that coverage to the area from a site on the rooftop of 3 High Street, Chislehurst was decommissioned and lost due to reasons outside the operators' control. Accordingly, there is a network deficit in the area and it is common ground between the parties that a replacement site is required.
15. Framework Policies CO1 and CO2 support the expansion and upgrading of telecommunications infrastructure, in ways which limit an unnecessary proliferation of equipment and respect important environmental safeguards. Framework Policy CO1 states that in considering proposals for the expansion or upgrading of electronic telecommunications networks, substantial weight should be given to the benefits of maintaining or improving network coverage, capacity, reliability and resilience.
16. I note the Appellant's evidence regarding future demand for effective communications networks on a national level, as well local network coverage issues. As the network would serve the ESN and replace a network deficit, I attribute substantial weight to the public benefit associated with the provision of network coverage.
17. In terms of alternative sites, the site in the car park to the rear of the supermarket benefits from prior approval for a 17.5m high pole supporting 6 x antennas and other equipment but has not been implemented. This site has been discounted by the Appellant as a sharable solution would require a larger scale structure capable of hosting all necessary apparatus for both the host and incoming operators. The Appellant's evidence indicates that this would result in a significant departure from the street furniture style aesthetic, a significant height and girth increase, and a much greater development footprint. In addition, the verge on which the approved apparatus would be located has a limited footprint such that any replacement would be likely to encroach on the car parking provision. However, details of the design and associated implications for the parking provision and potential effect on the CA are not before me to discount this site altogether.
18. Other alternative sites both within and outside the CA have been discounted for reasons including noise concerns, proximity to residential areas, operational and access restrictions. However, it has not been demonstrated that there are no alternative sites that would not be within the setting of listed buildings.
19. Part 1b of Framework Policy CO1 requires development to be sited and designed to minimise the visual impact of the proposals, especially in situations where a new site or structure is proposed, so far as practical taking into account its operational requirements. While I note the operation requirements of the proposal, given the proximity of the proposal to the listed building, I find that the proposal would not accord with this part of the Policy.

20. I note the comments of the inspector for the case at Hornbrook House Car Park¹. However, as that case was for a 20m high monopole and associated equipment, and in a different location albeit within the same CA, it is not directly comparable to this appeal.
21. The Framework states that any harm to a designated heritage asset will be a matter of considerable importance and weight. It goes on to say that development which would cause substantial harm to, or the total loss of, assets of the highest significance, notably scheduled monuments, protected wreck sites, registered battlefields, grade I and II* listed buildings, grade I and II* registered parks and gardens, and World Heritage Sites, should be wholly exceptional.
22. As it has not been demonstrated that alternative sites which do not affect the listed building could not yet be found, the substantial weight attributed to the public benefit would not outweigh the substantial harm to the CA and Church. Accordingly, the development would not be wholly exceptional to justify the substantial harm to a Grade II* listed building.
23. Consequently, the proposal would conflict with Policies 37, 38, 41, and 89 of the Bromley Local Plan January 2019 which together seek a high standard of design, no harm to the setting of listed buildings, preserve and enhance the characteristics and appearance of conservation areas and the design, siting and landscaping minimises the visual impact of the development.

Conclusion

24. For the reasons given above, the proposal would conflict with the development plan as a whole and in the absence of material considerations to indicate otherwise, the appeal is dismissed.

R Sabu

INSPECTOR

¹ Appeal ref: APP/G5180/W/22/3302869